

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

-----x Civil Case No. 07 CV 5308 (FB)(RLM)

LAMONT COULTER,

Plaintiff,

SECOND AMENDED
COMPLAINT

-against-

JURY DEMAND

THE CITY OF NEW YORK, SERGEANT
LAM (Tax I.D. # 917845), POLICE
OFFICER JOEL P. POLICHRON
(Tax I.D. # 933192) (Shield # 24564) and
POLICE OFFICER ANDREW DUGUID
(Shield # 92520),

Defendants.

-----x

LAMONT COULTER, by his attorney(s), THE LAW OFFICES OF WALE MOSAKU,
P.C., complaining of the defendants, The City of New York, Sergeant Lam (Tax I.D. #
917845), Police Officer Joel P. Polichron (Tax I.D. # 933192)/(Shield # 24564) and
Police Officer Andrew Duguid (Shield # 92520) (hereinafter collectively and individually
referred to as “the Defendants”), upon information and belief, alleges as follows:

NATURE OF THE ACTION

1. This is an action at law to redress the deprivation of rights secured to the plaintiff under color of statute, ordinance, regulation, custom, and/or to redress the deprivation of rights, privileges, and immunities secured to the plaintiff by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States, and by Title 42 U.S.C. § 1983 [and § 1985], [and arising under the law and statutes of the State of New York].

JURISDICTION

2. The jurisdiction of this Court is invoked pursuant to 42 U.S.C. Section 1983, 28 U.S.C. Section 1343, and 28 U.S.C. Section 1331,

and under the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution.

3. All causes of action not relying exclusively on the aforementioned federal causes of action as a basis of this Court's jurisdiction are based on the Court's supplemental jurisdiction pursuant to 28 U.S.C. §1367 to hear state law causes of action. The events, parties, transactions, and injuries that form the basis of plaintiff's federal claims are identical to the events, parties, transactions, and injuries that form the basis of plaintiff's claims under applicable State and City laws.
4. As the deprivation of rights complained of herein occurred within the Eastern District of New York, venue is proper in this district pursuant to 28 U.S.C. §1391 (b) and (c).

THE PARTIES

5. Plaintiff is a resident of the County of Kings, City and State of New York, United States of America. Plaintiff is a black male of full age.
6. At all relevant times, defendants Sergeant Lam (Tax I.D. # 917845), Police Officer Joel P. Polichron (Tax I.D. # 933192)/(Shield # 24564) and Police Officer Andrew Duguid (Shield # 92520) (hereinafter "defendant officers") were, upon information and belief, and still are, law enforcement officers assigned to the "Brooklyn North Narcotic 75 Module" and/or the 75th precinct of the Police Department of the City of New York.
7. At all times herein, defendant officers were employed as law enforcement officers of the City of New York, and were acting under the color of their official capacity, and their acts were performed under color of the statutes and ordinances of the City of New York.
8. Defendant officers were the servants, agents, and employees of their co-defendant, the City of New York, so that their acts are imputed to the City of New York and its Police Department.

9. At all relevant times, the defendant City of New York was and is a municipal corporation duly organized and existing under the laws of the State of New York, and was/is the employer of the defendant officers through it's Police Department, namely New York City Police Department, and the actions of the defendant officers complained of herein were done as part of the custom, practice, usage, regulation and/or direction of the City of New York.
10. Plaintiff sues all defendants in their individual and official capacities.

SATISFACTION OF THE PROCEDURAL PREREQUISITES FOR SUIT

11. All conditions precedent to filing of this action have been complied with; on July 2, 2007, within ninety days after the claims alleged in this complaint arose, a written notice of claim, sworn to by the plaintiff, was served upon the defendant City of New York by personal delivery of the notice in duplicate, to the person designated by law as one to whom a summons issued against such party may be delivered in an action in the applicable Courts. Plaintiff's claim was assigned Claim No. 2007PI019248.
12. At least thirty days have elapsed since the service of the above-mentioned notices of claim, and adjustment or payment of the claim has been neglected or refused.
13. This action, pursuant to New York State and City Law, has been commenced within one year and ninety days after the happening of the event(s) upon which the claim is based.

FACTUAL ALLEGATIONS COMMON TO ALL CAUSES OF ACTION

14. On or about June 3, 2007, at approximately 09:00 p.m., at or about the lobby of the plaintiff's apartment building described as 580 Sutter Avenue, Brooklyn, N.Y. 11207 ("subject premises"), the plaintiff was falsely arrested without probable cause by the defendant officers.
15. At the time of his arrest, the plaintiff was accosted by the defendant officers in the lobby of the subject premises.

16. The defendant officers, without explanation or any iota of probable cause, pushed the plaintiff against one of the walls of the lobby, and handcuffed the plaintiff.
17. The plaintiff, without explanation or any iota of probable cause, was then thoroughly searched by the defendant officers.
18. However nothing was found on the person of the plaintiff, and no illegal items or substances were recovered from the plaintiff.
19. Despite the fact that the defendant officers recovered nothing illegal on the body of the plaintiff, the defendant officers, without explanation or any iota of probable cause, nevertheless transported the plaintiff to the 75th precinct.
20. Upon arrival at the 75th precinct, the plaintiff was taken into a restroom and ordered to take off all of his clothes. The plaintiff protested that he had done nothing to deserve his treatment. However the plaintiff was told to “shut up” and do what he was told or he would be arrested for disorderly conduct.
21. As such, facing such threats, the plaintiff had no choice but to take off all of his clothes. The plaintiff was then ordered to bend over and spread apart his buttocks in the presence of the defendant officers.
22. The plaintiff again protested this dehumanizing and demeaning treatment, and was again ordered by the defendant officers to “shut up and be quiet” or be arrested for disorderly conduct.
23. As such, facing such threats, the plaintiff had no choice but to bend over and spread apart his buttocks in the presence of the defendant officers.
24. Said intrusive, illegal dehumanizing and demeaning search revealed nothing illegal on the person of the plaintiff.
25. The defendant officers, who never informed the plaintiff of the reason(s) why he was stopped, searched, arrested and strip searched, thereafter transported the plaintiff back to his neighborhood.

26. The plaintiff was taken to a spot approximately two blocks away from the subject premises, and told to “get out”.
27. The defendant officers then drove away.
28. Defendant Police Officer Joel P. Polichron subsequently filed an Arrest Report (Arrest I.D. # K07649936), wherein he falsely stated that the cause of the arrest was that the plaintiff “was observed exchanging a white rocky substance with an unaprehended (sic) other”.

FIRST CAUSE OF ACTION: FALSE ARREST AND FALSE IMPRISONMENT

29. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 28 of this complaint as though fully set forth herein.
30. The arrest, detention and imprisonment of plaintiff were without just or probable cause and without any warrant or legal process directing or authorizing the plaintiff’s arrest or subsequent detention.
31. As a result of plaintiff’s false arrest and imprisonment, he has been caused to suffer humiliation, great mental and physical anguish, embarrassment and scorn among those who know him, was prevented from attending to his necessary affairs, and has been caused to incur legal expenses, and has been otherwise damaged in his character and reputation.
32. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.
33. The defendant officers were at all material times acting within the scope of their employment, and as such, the defendant City is vicariously liable for the defendant officers acts as described above.
34. This action falls within one or more of the exceptions of the New York State Civil Practice Law and Rules §1602.

SECOND CAUSE OF ACTION AGAINST ALL DEFENDANTS: ASSAULT AND BATTERY

35. Plaintiff repeats and realleges paragraphs 1 through 34 as if each paragraph is repeated verbatim herein.
36. At the time of plaintiff's arrest by defendant officers, plaintiff did not challenge nor resist the defendant officers, nor engage in any threatening behavior towards the defendant officers.
37. However, the defendant officers assaulted and battered the plaintiff as set forth in detail above.
38. The defendant officers were at all material times acting within the scope of their employment, and as such, the defendant City is vicariously liable for the defendant officers acts as described above.
39. Consequently, the plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.
40. This action, upon information and belief, falls within one or more of the exceptions of CPLR 1602.

THIRD CAUSE OF ACTION AGAINST ALL DEFENDANTS: DEPRIVATION OF
CIVIL RIGHTS

41. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 40 of this complaint as though fully set forth herein.
42. The defendant officers acted under color of law, in their official capacity, and their acts were performed under color of the statutes and ordinances, customs and practices of the City of New York.
43. The conduct of the defendants deprived plaintiff of the following rights, privileges and immunities secured to him by the Constitution of the United States:
 - (a) The right of plaintiff to be secure in his person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States.

(b) The right of the plaintiff to be promptly informed of the nature and cause of the accusation against him, secured to him under the Sixth and Fourteenth Amendments to the Constitution of the United States.

(c) The right of plaintiff not to be deprived of life, liberty, or property without due process of law, and the right to the equal protection of the laws, secured to him by the Fifth and Fourteenth Amendments to the Constitution of the United States.

(d) The right to be free from unreasonable detention and/or continued detention without probable cause in that plaintiff was detained.

44. At all times relevant to this complaint, defendant officers, as police officers of the City of New York, were acting under the direction and control of defendant City of New York, and were acting pursuant to the official policy, practice, or custom of the City of New York. The allegations in this paragraph are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery.
45. Acting under color of law and pursuant to official policy, practice, or custom, defendant City of New York intentionally, knowingly, negligently and recklessly failed to instruct, supervise, control, and discipline, on a continuing basis, defendant officers in their duties, to refrain from unlawfully and maliciously arresting and imprisoning citizens. The allegations in this paragraph are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery.
46. Acting under color of law and pursuant to official policy, practice, or custom, defendant City of New York intentionally, knowingly, negligently and recklessly failed to instruct, train, and supervise defendant officers on a continuing basis in the correct procedure for making an arrest. The allegations in this paragraph are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery.

47. Defendant City of New York had knowledge, or, had they diligently exercised their duties to instruct, supervise, control, and discipline on a continuing basis, should have had knowledge that the wrongs which were done, as heretofore alleged, were about to be committed. Defendant City of New York had power to prevent or aid in preventing the commission of said wrongs, could have done so by reasonable diligence, and intentionally, knowingly, negligently or recklessly failed or refused to do so. The allegations in this paragraph are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery.
48. Defendant City of New York, directly or indirectly, under color of law, approved or ratified the unlawful, deliberate, malicious, reckless, and wanton conduct of defendant officers as heretofore described. The allegations in this paragraph are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery.
49. As a direct and proximate result of the acts of the defendants as set forth herein, plaintiff suffered severe mental anguish in connection with the deprivation of his constitutional rights guaranteed by the Fourth and Fourteenth Amendments to the Constitution of the United States and protected by 42 U.S.C. Section 1983.
50. The acts of the defendants as set forth above were wanton, malicious, and oppressive, thus entitling plaintiff to an award of punitive and compensatory damages against each of them, individually and severally.

WHEREFORE, plaintiff respectfully prays judgment as follows:

1. For compensatory damages against all defendants in an amount to be proven at trial;
2. For exemplary and punitive damages against all defendants in an amount to be proven at trial;
3. For costs of suit herein, including plaintiff's reasonable attorney's fees; and;

4. For such other and further relief as the court deems proper.

DEMAND FOR TRIAL BY JURY

Pursuant to Rule 38 (b) of the Federal Rules of Civil Procedure, plaintiff demands a trial by jury.

Dated: Brooklyn, New York
April 1, 2009

LAW OFFICES OF WALE MOSAKU, P.C.

By: /s/

Wale Mosaku, Esq. (AM 5872)
Attorney for the Plaintiff
25 Bond Street, 3rd Floor
Brooklyn, N.Y. 11201
(718) 243-0994

Brian Maxey, Esq.
Assistant Corporation Counsel
City of New York Law Department
Attorney(s) for defendants
CITY OF NEW YORK, SERGEANT LAM and POLICE OFFICER JOEL P.
POLICHRON
100 Church Street
New York, N.Y. 10007
(212) 788-1277

Police Officer Andrew Duguid
New York City Police Department
75th Police Precinct/Brooklyn North Narcotic 75 Module
1000 Sutter Avenue
Brooklyn, New York 11208